

Yamuna Singh Yadav @ Jamuna Yadav v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 1 April 2024 · 2024:AHC:54965-DB · Writ-C No. 5011 of 2024
· **Writ disposed as infructuous; fresh Supply Code order reserved.**

HEADNOTE

Writ against an electricity recovery certificate. The licensee withdrew the final assessment for technical reasons after admitting that the prescribed procedure had not been followed. The petition was disposed of as infructuous, with liberty to pass a fresh order strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Yamuna Singh Yadav, also known as Jamuna Yadav, filed a writ challenging the recovery certificate dated 31 January 2024 issued by respondent no. 4 for electricity dues. On 5 March 2024, counsel for the electricity department admitted that the prescribed procedure had not been followed in issuing the final assessment order, and the writ was directed to be connected with Writ-C No. 3458 of 2024. The Executive Engineer then stated that the final assessment, which was not happily worded, had been withdrawn on 2 March 2024 for technical reasons.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a procedurally defective final assessment

HOLDING

The electricity department having withdrawn the final assessment and the recovery founded on it for technical reasons, the writ challenging the recovery certificate is disposed of as infructuous. The department remains at liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-4

PRINCIPLE TAGS

fresh-order-under-supply-code

Applied to dispose of the writ as infructuous once the licensee withdrew the final assessment and recovery for technical reasons, while reserving liberty to pass a fresh order strictly under the U.P. Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF ANY FRESH ASSESSMENT OF THE ELECTRICITY DUES

The impugned final assessment was withdrawn by the department. The Court did not examine the dues and left the licensee free to pass a fresh order under the Supply Code procedure. ¶ 3-4